

PLANNING PERMIT

Permit No.:	PA2403016
Planning scheme:	Melton Planning Scheme
Responsible authority:	Minister for Planning
ADDRESS OF THE LAND:	54-80 Ferris Road, Cobblebank (Lot 1 on Title Plan 189113R)

THE PERMIT ALLOWS:

Planning scheme clause No.	Description of what is allowed
34.02-1	Use the land for a data centre
34.02-4	Construct a building or construct or carry out works

THE FOLLOWING CONDITIONS APPLY TO THIS PERMIT:

Compliance with documents approved under this permit

1. At all times what the permit allows must be carried out in accordance with the requirements of any document approved under this permit to the satisfaction of the responsible authority.

Commencement

2. This permit will operate from the issued date of this permit.

Amended Plans

3. Before the use and development starts, excluding demolition, bulk excavation and site preparation works, plans must be approved and endorsed by the responsible authority. The plans must be prepared to the satisfaction of the responsible authority, be drawn to scale with dimensions, be generally in accordance with the Architectural plans prepared by DesignInc Rev A, dated 02/02/2024, but amended to show the following details:
 - a. Number of car spaces to correctly referred to in the legend.
 - b. Additional material, such as colorbond, or articulation to Building A's north elevation and Building B's west elevation
 - c. Provide a continuous awning along all street facing façades to the office components.

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- d. Clear demonstrate pedestrian pathways from the access points to building entries.
- e. Any changes required as per Conditions 5, 7, 9, 10, 12, 14, 18, 21, and 25.
- f. The location of electric vehicle capable car spaces.
- g. Any changes required as per Fire Rescue Victoria Condition 33.
- h. Any changes required as per Melbourne Water Condition 34 and 35.

Layout not altered

- 4. The development as shown on the endorsed plans must not be altered (unless the Melton Planning Scheme specifies that a permit is not required) without the prior written consent of the responsible authority.

Landscape Plan

- 5. Concurrent with the endorsement of plans, excluding demolition, bulk excavation and site preparation works, an amended landscape plan must be approved and endorsed by the responsible authority. The landscape plan must be prepared to the satisfaction of the responsible authority, be drawn to scale with dimensions, be generally in accordance with the Landscape Plan prepared by Arcadia, dated January 2024, and must include the following:
 - a. Canopy tree quantities to be included.
 - b. Increase the amount of vegetation to the Building A's front setback and surrounding the car park for Building A.

Landscaping maintenance

- 6. At all times the landscaping shown on the approved landscape plan must be maintained (including the replacement of any dead, diseased or damaged plants) to the satisfaction of the responsible authority.

Tree protection during construction

- 7. All protection measures identified in the endorsed Tree protection and removal plan prepared by Active Green Services, dated 20/08/2024 must be implemented, and development works undertaken on the land must be undertaken in accordance with the Tree Management and Protection Plans, to the satisfaction of the responsible authority.

Lighting Plan

- 8. Before the development starts, excluding demolition, bulk excavation and site preparation works, a detailed lighting plan must be approved by the responsible authority in consultation with Melton City Council. This plan must:
 - a. Identify all proposed lighting sources, lux levels and spillage details and address how the lighting will integrate with any existing lighting.
 - b. lighting must be designed, baffled and located so as to prevent any adverse effect on adjoining land to the satisfaction of the responsible authority.

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The approved lighting plan must be implemented as part of the development to the satisfaction of the responsible authority.

Environmentally Sustainable Design

9. Concurrent with the endorsement of plans, an amended sustainability management plan (SMP) must be approved and endorsed by the responsible authority. The SMP must be generally in accordance with Sustainable Management Plan prepared Aurecon, dated 28/06/2024, but amended to show the following details:
 - a. Refer to the correct council, Melton City Council
10. Concurrent with the endorsement of plans, an amended Green Travel Plan (GTP) must be approved and endorsed by the responsible authority. The GTP must be generally in accordance with Green Travel Plan prepared by Aurecon, dated 19/06/2024, but amended to show the following details:
 - b. Refer to the correct council, Melton City Council.
11. All commitments within the endorsed SMP and GTP must be undertaken in accordance with the endorsed plans to the satisfaction of the responsible authority. No alterations must occur without the prior written consent of the responsible authority.

Noise Attenuation

12. The recommendations of the endorsed Acoustic Environmental Impact Assessment prepared by Aurecon, dated 21 July 2024 must be implemented to the satisfaction of the responsible authority.

The responsible authority may consent in writing to alter the requirements.
13. At all times noise emanating from the land must comply with the requirements of the *Environment Protection Regulations 2021* (as amended from time to time) as measured in accordance with the Noise Protocol to the satisfaction of the Melton City Council.

Construction Site Environmental Management Plan

14. Prior to commencement of works, a Construction Site Environmental Management Plan (CSEMP), must be submitted to and approved by the Responsible Authority, in consultation with Melton City Council, to address the potential impacts of construction works. The CSEMP must be generally in accordance with EPA Publication 1834: Civil construction, building and demolition guide and must include (but not limited to) the following:
 - a) Public safety, amenity and site security
 - b) Operating hours, noise and vibration control
 - c) Methods to manage:
 - i. noise,
 - ii. dust,
 - iii. erosion and sediment control,

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- iv. waste and chemical management,
 - v. flora/fauna protection,
 - vi. weed control, and
 - vii. traffic management.
15. Prior to commencement of works, contractors must be inducted into the CSEMP and all flora and fauna conservation requirements.
16. The approved CSEMP must be implemented to the satisfaction of the Responsible Authority.
17. No earthworks, compaction or modification of existing drainage patterns may be undertaken which present a risk to any remnant trees, understorey, or revegetation areas.

Stormwater Management

18. Before the use and development starts, excluding demolition, bulk excavation and site preparation works, a stormwater management plan must be approved and endorsed by the responsible authority, in consultation with Melton City Council. The stormwater management plan must be prepared to the satisfaction of the responsible authority, be generally in accordance with the Stormwater Management Plan prepared by Aurecon, dated 22/07/2024.

Stormwater management system – implementation and management

19. The stormwater management system approved by the responsible authority and included in the endorsed stormwater management plan must be constructed, managed and maintained to the satisfaction of the Melton City Council.
20. The details of the stormwater management system must not be altered from the details in the endorsed stormwater management plan without the written consent of the responsible authority, in consultation with Melton City Council.

Waste

21. Concurrently with the endorsement of plans, an amended waste management plan (WMP) must be approved and endorsed by the responsible authority, in consultation with Melton City Council. The WMP must be prepared to the satisfaction of the responsible authority, be generally in accordance with the Waste Management Plan prepared by Aurecon, dated 23/01/2024, but amended to show the following details:

a) Refer to the correct council, Melton City Council.

22. The endorsed waste management plan must be implemented to the satisfaction of the Melton City Council.

Parking and Traffic Management

23. Before the use starts, the area(s) set aside for the parking of vehicles and bicycles, and access lanes as shown on the endorsed plans must be:
- a. constructed
 - b. properly formed to such levels that they can be used in accordance with the plans

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- c. surfaced with an all-weather-seal coat
 - d. drained
 - e. line marked to indicate each car space and all access lanes
 - f. clearly marked to show the direction of traffic along access lanes and driveways,
- to the satisfaction of the responsible authority, in consultation with Melton City Council.

At all times car spaces, access lanes and driveways must be kept available for these purposes. Once constructed, these areas must be maintained to the satisfaction of the Melton City Council.

24. In areas set aside for car parking, measures must be taken to the satisfaction of the responsible authority to prevent damage to fences or landscaped areas.

Detailed construction plans – roads and drains

25. Before the use commences, detailed construction plans for the accessways/roads must be approved and endorsed by the responsible authority, in consultation with Melton City Council. The construction plans must:

- a) include the details, where appropriate, of any materials, footpaths, underground drains, and vehicle crossings.

The responsible authority may consent in writing to vary any of the details of these requirements. This condition requirement is waived if the road construction is approved under a certified subdivision before the use commences.

26. Before the use commences, the accessway/road must be constructed to the satisfaction of Melton City Council

General amenity provision

27. The use and development must be managed so that the amenity of the area is not detrimentally affected, through the:

- a. transport of materials, goods or commodities to or from the land
- b. appearance of any building, works or materials
- c. emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil
- d. presence of vermin

to the satisfaction of the Melton City Council.

Run-off control

28. Polluted and/or sediment laden run-off must not be discharged directly or indirectly into Melton City Council drains or watercourses.

Preliminary Hazard Analysis

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29. The recommendations of the endorsed Preliminary Hazard Analysis Building A and Building B prepared by Aurecon, dated 29 July 2024 must be implemented to the satisfaction of the responsible authority.

Landfill Gas Risk Assessment

30. The assumptions made in the endorsed Landfill Gas Risk Assessment prepared by EHS Support, dated February 2024 must be followed to the satisfaction of the responsible authority. If any deviation of the risk assessment occurs, a new assessment must be conducted by a qualified practitioner and the recommendation followed, to the satisfaction of the responsible authority.

Development Contributions Plan

31. Prior to the occupation of the development, or as otherwise agreed with Melton City Council, the development infrastructure levy must be paid to the Responsible Authority in accordance with the provisions of the approved Development Contributions Plan for the land.

WorkSafe Conditions

32. The applicant must undertake a dangerous goods assessment prior to operations commencing. This will aid in the identification of tank bunding requirements, tank design and required fire protection measures. The applicant is required to address recommendations made in this study.

Fire Rescue Victoria Conditions

33. At least one month prior to the commencement of construction of the development (except for construction of those preliminary works that are outside the scope of the hazard studies), or within such further period as the planning department may agree, the Applicant must prepare and submit a Fire Safety Study (FSS) for the development. The FSS must:
- a) Meet the operational requirements of FRV;
 - b) Address the relevant aspects of the:
 - i. FRV fire safety guidelines GL -54 Fire Safety Study; and
 - ii. FRV Fire Safety Guideline GI-12 for contaminated water retention and treatment systems; and
 - c) Consider the operational capability of local fire agencies and the need for the facility to achieve an adequate level of on-site fire and life safety independence.
 - d) Verify that the final design of the fire safety system(s) complies with:
 - i. AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles (Standards Australia, 2000);
 - ii. IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications (Standards Australia, 2023).
 - iii. FM Global Loss Prevention Data Sheet 5- 32 – Data centre or equivalent; and
 - iv. NFPA 855:2023 Standard for the Installation of Stationary Energy Storage Systems or equivalent.

In the event of an inconsistency between the requirements listed above, the requirements as agreed to with FRV shall prevail to the extent of inconsistency.



Melbourne Water Conditions

34. Prior to the commencement of any buildings or works, a Site Management Plan detailing pollution and sediment control measures or any additional runoff mitigation measures must be approved and endorsed by the responsible authority, in consultation with Melbourne Water.
35. Prior to the Commencement of Works (other than early earthworks and site preparation that do not result in a change to imperviousness on the site), a Stormwater Management Strategy consistent with the Aurecon Stormwater Management Plan dated 22 July 2024 must be submitted and approved by Melbourne Water and Melton City Council. The strategy must demonstrate the following:
 - a. The proposed alignment for any 20%/10% AEP drainage infrastructure and any associated overland flow path directions for the 1% AEP flood event.
 - b. That the lot layout adequately accommodates the overland flows.
 - c. Flood Extent Plan and Overland Flow-path Plan for the ultimate floodplain, including 1% AEP flood levels.
 - d. Details of the outlet connections and temporary outfall/s for the development including all relevant calculations.
 - e. Details of the ultimate and interim drainage arrangements and how these works are proposed to align with the development. Details of the proposed staging of the development and how this aligns with the construction of temporary and ultimate drainage assets.
36. Prior to the issue of a Certificate of Occupancy under the Building Act 1993, as constructed engineering plans of the development (in electronic format) must be submitted to Melbourne Water for our records. These plans must show road and drainage details and any overland flow paths for the 1% AEP storm event.
37. Prior to the issue of a Certificate of Occupancy under the Building Act 1993, a legal point of discharge shall be arranged to the satisfaction of Melbourne Water and the responsible authority.
38. Prior to the issue of a Certificate of Occupancy under the Building Act 1993, stormwater drainage works in accordance with the approved Aurecon Stormwater Management Plan dated 22 July 2024, must be constructed to the satisfaction of Melbourne Water and the responsible authority.
39. The developer must own and maintain any interim assets in accordance with the approved Aurecon Stormwater Management Plan dated 22 July 2024 until such time that the ultimate outfall is in place. Melbourne Water will not accept responsibility for any interim drainage works.
40. The land is to be filled to a minimum of 300 mm above the 1% AEP flood levels associated with any existing or proposed Melbourne Water pipeline and/or the lot to be filled to a minimum of 600 mm above the 1% AEP flood level associated with any existing or proposed Melbourne Water wetland, retarding basin or waterway. A certified survey plan prepared by or under the supervision of a licensed land surveyor, showing finished floor levels reduced to the Australian Height Datum, may need to be submitted to Melbourne Water for our records.



Expiry

41. This permit will expire if one of the following circumstances applies:

- a. The development is not started within two [2] years of the issued date of this permit.
- b. The development is not completed within four [4] years of the issued date of this permit.
- c. The use does not start within two [2] years of completion of the development.
- d. The use is discontinued for a period of two [2] years.

In accordance with Section 69 of the *Planning and Environment Act 1987*, the responsible authority may extend the permit if a request is made in writing before the permit expires, or within six months afterwards. The responsible authority may extend the time for completion of the development if a request is made in writing within twelve months after the permit expires and the development started lawfully before the permit expired.

USEFUL INFORMATION:

- The permitted use or development may need to comply with, or obtain the following further approvals:
 - A building permit under the *Building Act 1993*.
- The *Environment Protection Act 2017* came into effect on 1 July 2021. The general environmental duty (GED) is a centrepiece of the laws and applies to all Victorians. If your business engages in activities that may give rise to a risk to human health or the environment from pollution or waste, you must understand those risks and take action to reduce risk of harm and demonstrate good practices, by using best available techniques and technologies so far as reasonably practicable. This preventative approach is a continuous process and should be undertaken with the understanding that even if risks associated with an operation or activity have been considered as low and appropriate management measures are in place, future assessment of the risks may identify and require additional controls to be implemented.

For further information on what the laws mean for Victorian businesses go to:
<https://www.epa.vic.gov.au/for-business/new-laws-and-your-business>



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IMPORTANT INFORMATION ABOUT THIS PERMIT

WHAT HAS BEEN DECIDED?

The responsible authority has issued a permit

(Note: This is not a permit granted under Division 5 or 6 of Part 4 of the **Planning and Environment Act 1987**.)

CAN THE RESPONSIBLE AUTHORITY AMEND THIS PERMIT?

The responsible authority may amend this permit under Division 1A of Part 4 of the **Planning and Environment Act 1987**.

WHEN DOES A PERMIT BEGIN?

A permit operates:

- from the date specified in the permit; or
- if no date is specified, from—
 - i. the date of the decision of the Victorian Civil and Administrative Tribunal, if the permit was issued at the direction of the Tribunal; or
 - ii. the date on which it was issued, in any other case.

WHEN DOES A PERMIT EXPIRE?

1. A permit for the development of land expires if—
 - the development or any stage of it does not start within the time specified in the permit; or
 - the development requires the certification of a plan of subdivision or consolidation under the **Subdivision Act 1988** and the plan is not certified within two years of the issue of the permit, unless the permit contains a different provision; or
 - the development or any stage is not completed within the time specified in the permit, or, if no time is specified, within two years after the issue of the permit or in the case of a subdivision or consolidation, within five years of the certification of the plan of subdivision or consolidation under the **Subdivision Act 1988**.
2. A permit for the use of land expires if—
 - the use does not start within the time specified in the permit, or if no time is specified, within two years after the issue of the permit; or
 - the use is discontinued for a period of two years.
3. A permit for the development and use of land expires if—
 - the development or any stage of it does not start within the time specified in the permit; or
 - the development or any stage of it is not completed within the time specified in the permit, or, if no time is specified, within two years after the issue of the permit; or
 - the use does not start within the time specified in the permit, or, if no time is specified, within two years after the completion of the development; or
 - the use is discontinued for a period of two years.
4. If a permit for the use of land or the development and use of land or relating to any of the circumstances mentioned in section 6A(2) of the **Planning and Environment Act 1987**, or to any combination of use, development or any of those circumstances requires the certification of a plan under the **Subdivision Act 1988**, unless the permit contains a different provision—
 - the use or development of any stage is to be taken to have started when the plan is certified; and
 - the permit expires if the plan is not certified within two years of the issue of the permit.
5. The expiry of a permit does not affect the validity of anything done under that permit before the expiry.

WHAT ABOUT REVIEWS?

- The person who applied for the permit may apply for a review of any condition in the permit unless it was granted at the direction of the Victorian Civil and Administrative Tribunal, in which case no right of review exists.
- An application for review must be lodged within 60 days after the permit was issued, unless a notice of decision to grant a permit has been issued previously, in which case the application for review must be lodged within 60 days after the giving of that notice.
- An application for review is lodged with the Victorian Civil and Administrative Tribunal.
- An application for review must be made on the relevant form which can be obtained from the Victorian Civil and Administrative Tribunal, and be accompanied by the applicable fee.
- An application for review must state the grounds upon which it is based.
- A copy of an application for review must also be served on the responsible authority.
- Details about applications for review and the fees payable can be obtained from the Victorian Civil and Administrative Tribunal.

Date issued: 3 October 2024 Signature for the responsible authority:

